

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N FIRST AVENUE HILLSBORO OREGON 97124

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY

2026 JUN 29 A 10:06

In the Matter of:
Al-mira Amira Jazmine Davis, a Child

Case No: 25JU04261

PERMANENCY JUDGMENT

This matter came before the court on 06/29/2026 for a permanency hearing

Persons appearing:	
Child ☐ : Al-mira Amira Jazmine Davis	Attorney ☐ : Ridehalgh & Associates – Ryan Lhotsky
Mother/Parent ☐ : Ashle Antoinette Penn	Attorney ☐ :
Father/Parent ☐ : Alquan Adam Davis	Attorney ☐ : Hillsboro Law Group – Yvana Mols
Alleged Genetic Parent ☐ :	Attorney ☐ :
Indian Custodian ☐ :	Attorney ☐ :
Tribe ☐ :	Tribe Atty/Rep ☐ :
CASA ☐ : Keiko Tsuji	Assist. Atty Gen'l ☐ : Yazmin Wadia
Guardian ☐ :	Other ☐ :
ODHS Caseworker ☐ : David Milne	Other ☐ :
Guardian Ad Litem ☐ :	

Relevant Dates

Date the child was last placed in substitute care: Σ

Date the child was placed in current placement: Σ

Type of Permanency Hearing

☒ **Annual Review:** 12 months after jurisdictional finding or 14 months after child's placement in substitute care, or subsequent annual review. ORS 419B.470(2) and (7)

☐ **At the request of:** Σ ☐ **By order of the court.** ORS 419B.470(6)

☐ **Delayed initiation of adoption proceedings/placement:** six months have passed since child was surrendered or parental rights were terminated (permanency hearing required every six months until child is placed, or adoption proceedings initiated).
ORS 419B.470(4) and (8)

☐ **Child removed from court sanctioned permanent foster care** (hearing within 90 days). ORS 419B.470(3)

☐ Child in substitute care 15/22 months. ☐ Parent convicted of crime listed in ORS 419B.498(1)(b)

- ☐ Following reinstatement of parental rights under ORS 419B.532
- ☐ A court has determined that the child is an abandoned child. ORS 419B.498(1)(c)

Jurisdiction and Wardship

The child was found to be within the juvenile court's jurisdiction by judgment entered on 10/31/2025

Indian Child Welfare Act (ICWA/ORICWA) Findings

ODHS ☒ did ☐ did not make a good faith effort under ORICWA to determine whether the child is an Indian child (or)

☐ The Court previously found ODHS has made a good faith effort under ORICWA to determine whether the child is an Indian child

At this time, the Court does not have reason to know that ICWA/ORICWA applies. No individual present at the hearing knows or has reason to know the child is an Indian child under ICWA/ORICWA, and there is no additional information that has been presented that provides the court reason to know that ICWA/ORICWA applies. Or Laws 2021, ch. 398, §14.

Standard of Proof and Evidence Considered

Except where noted, the findings made below are based on a preponderance of the evidence.

The court considered the following evidence in making the findings and orders in this Judgment:

- ☐ Stipulations by the parties
- ☒ The exhibits admitted by the court
- ☒ The testimony of the witnesses at the hearing
- ☐ The following facts/law, of which the court has taken judicial notice:

THE COURT MAKES THE FOLLOWING FINDINGS AND ORDERS:

1. JURISDICTION AND WARDSHIP

The child was found to be within the juvenile court's jurisdiction by judgment(s) entered on: Σ

2. Notice & Participation

► Grandparents

☒ ODHS ☒ made ☐ did not make diligent efforts to identify, obtain contact information for, and notify all grandparents of the hearing.

☒ No grandparents attended the hearing, **or**

The following grandparents attended the hearing and had an opportunity to be heard:

Maternal:

☐ Grandmother ☐ Grandfather

Paternal:

☐ Grandmother ☐ Grandfather

☐ The grandparents who attended the hearing were informed of the date of a future hearing

☐ ODHS **did not** give the grandparents notice of the hearing because ☐ a prior order relieved ODHS of the notice requirement *or* ☐ (explain):
☐ For good cause shown, the court relieves ODHS of the responsibility to provide notice of this hearing to ☐ all grandparents *or* ☐ the following grandparents:

► **Foster Parents or Care Providers**

☒ The child is in substitute care. ODHS ☒ **did** ☐ **did not** give the foster parents or current care providers notice of the hearing
☐ The foster parents or current care providers **did not attend** the hearing
☒ The foster parents or current care providers **attended** the hearing and had an opportunity to be heard

3. Placement

The child's current placement is: ☐ in home with parent or guardian *or* **substitute care** with: ☒ relative ☐ current caretaker ☐ non-relative/non-current caretaker
☐ permanent foster care ☐ residential ☐ adoptive resource ☐ Other:
 ➤ placement ☐ **is** ☒ **is not** an interstate placement
 ➤ placement ☒ **is** ☐ **is not** the least restrictive, most family-like setting that meets the health and safety needs of the child and is in reasonable proximity to the child's home
 ➤ ☒ the placement **is** in the best interests of the child.
 ➤ ☐ the placement **is not** in the best interests of the child. ODHS is ordered to place the child in:
☐ home with parent *or* ☐ substitute care with: ☐ relative ☐ current caretaker ☐ non-relative/non-current caretaker ☐ residential ☐ other:

4. ICWA/ORICWA Placement Preferences

N/A

5. Diligent Efforts – Child in Substitute Care

► **Relative Placement**

☒ The child is in substitute care and ODHS ☒ **has** ☐ **has not** made diligent efforts to place the child with a relative or person who has a caregiver relationship with the child as required by ORS 419B.192
☐ ODHS has decided to place the child with a relative or person who has a caregiver relationship with the child, but that placement is not in the child's best interests because:

► **Sibling Placement**

☐ The child is in substitute care and has one or more siblings in substitute care. ODHS ☐ **has** ☐ **has not** made diligent efforts to place the child with a sibling as required by ORS 419B.192.
☐ Placement together is not in the best interests of the child or sibling

6. Number of placements, visits, school changes, and ODHS contacts

Since the child has been in the legal custody and guardianship of ODHS the child has had:

	Number	Is the number in the child's best interest?
Face to face contacts with caseworker	20	☐ yes ☐ no
Out of home placements	1	☐ yes ☐ no

Visits with Mother/Parent		☐ yes	☐ no
Visits with Father/Parent		☐ yes	☐ no
Visits with sibling(s)		☐ yes	☐ no
Schools attended		☐ yes	☐ no

► **School of origin.**

- ☐ The court finds **it is** in the child's best interest to attend the child's school of origin
☐ The court finds **it is not** in the child's best interest to attend the child's school of origin or any other school in the child's district of origin

7. Education (child 14 or older)

- ☐ The child has graduated from high school
The child is 14 years of age or older and ☐ is ☒ **is not** progressing adequately toward graduation from high school, needs more credits to graduate, and is expected to graduate (date)
☐ ODHS **has made** the following efforts to assist the child to graduate:
☐ ODHS **is ordered to make** the following additional efforts:

8. Extracurricular, Cultural, and Social Activities (Child in APPLA plan)

- ☐ The court finds ODHS ☐ has ☐ has not taken sufficient steps to ensure that the ward's substitute care provider is following the reasonable and prudent parent standard and the ward has regular, ongoing opportunities to engage in age-appropriate or developmentally appropriate activities. Those steps include:
☐ Description of ODHS steps attached as Exhibit and adopted as the court's written findings

9. Transition plan (Child 14 or older)

- ☐ Plan review is not required
☐ Plan review is required:
☐ the child is 14 years old or older

The comprehensive plan ☐ **is** ☐ **is not** adequate to ensure the child's successful transition to independent living.

ODHS ☐ **has** ☐ **has not** offered appropriate services pursuant to the comprehensive plan and ☐ **has** ☐ **has not** involved the child in the development of the comprehensive plan.

☐ ODHS is ordered to modify the comprehensive plan or the development of the plan as follows:

10. Permanent Plan - Reunification

(skip to next section when current permanent plan is other than reunification)

☒ Reunification of the family is the permanent plan (case plan) in effect at the time of this hearing

► **ODHS reunification efforts**

This case is not an ICWA case so ODHS is required to make reasonable efforts to reunify the family

ODHS ☒ **has** ☐ **has not** made reasonable efforts to reunify the family and finalize the permanent plan of reunification. The court considered whether placement of the child and

referral to the Strengthening, Preserving and Reunifying Families Program is in the child's best interest as required by ORS 418.595.

- **Description** of efforts ☒ received in Exhibit 1 and adopted as the court's written findings *or* as follows: Σ

► **Case Plan Compliance & Progress**

ODHS:	☒ ODHS is in compliance with the current case plan ☐ ODHS is not in compliance with the current case plan and to correct the non-compliance ODHS is ordered to: ☐ ODHS is ordered to develop or modify the case plan as follows within Σ days after this hearing and to provide a case progress report to the court and the parties. Additional findings and orders:
Mother/Parent:	Mother/Parent is involved in this case and ☐ has ☒ has not made sufficient progress toward meeting the expectations set forth in the service agreement, letter of expectation, or case plan. The child ☐ can be ☒ cannot be ☐ has been safely returned to mother/parent's care. Additional findings and orders: *has refused to engage* ☐ Mother/Parent is not involved in the case because parental rights were terminated or relinquished, or mother/parent is deceased
Father/Parent:	Father/Parent is involved in this case and ☒ has ☐ has not made sufficient progress toward meeting the expectations set forth in the service agreement, letter of expectation, or case plan. The child ☐ can be ☒ cannot be ☐ has been safely returned to father/parent's care. Additional findings and orders: *criminal court prevents contact* ☐ Father/Parent is not involved in the case, because parental rights were terminated or relinquished, or father/parent is deceased

11. Concurrent Planning (when plan is reunification)

- ☐ There **is** a concurrent plan. That plan is: ☐ Adoption ☐ Tribal customary adoption
☐ Permanent guardianship under ORS 419B.365 ☐ Guardianship under ORS 419B.366 ☐ Placement with a fit and willing relative ☐ A Planned Permanent Living Arrangement (APPLA) which is
☐ permanent foster care ☐ permanent connections and support (residential treatment, independent living, substitute caregiver).

ODHS has made the following efforts to develop the concurrent plan that ☐ **include** ☐ **do not include** efforts to identify appropriate permanent placement options both inside and outside this state: Σ

Those efforts ☐ **are** ☐ **are not** sufficient. ODHS is ordered to make the following additional efforts to develop the concurrent plan and report those efforts to the court:

► **Orders re: Permanent Case Plan of Reunification**

The court orders that the case plan of reunification be:

☒ Continued	☐ Changed from reunification to a different plan
The court finds that the permanent plan of reunification continue in effect as set forth in <u>SECTION 12</u> of this judgment.	The plan of reunification should be changed to a different permanent plan because, despite the reasonable reunification efforts of ODHS, the child cannot be safely returned to ☐ mother/parent's ☐ father/parent's care at the time of the hearing and the evidence does not support a determination that further efforts will make it possible for the child to safely return home within a reasonable time THEREFORE, the permanent plan is changed from reunification of the family to the permanent plan specified in <u>SECTION 12</u> below

12. Permanent Plan - Other than Reunification (remove highlighting if using this section)

☐ A permanent plan (case plan) other than reunification of the family is in effect at the time of the permanency hearing

► The case plan in effect at the time of the hearing is ☐ Adoption ☐ Tribal customary adoption ☐ Permanent guardianship under ORS 419B.365 ☐ Guardianship under ORS 419B.366 ☐ Placement with a fit and willing relative ☐ A Planned Permanent Living Arrangement (APPLA) which is ☐ permanent foster care ☐ permanent connections and support (residential treatment, independent living, substitute caregiver)

► **Tribal customary adoption** ☐ is ☐ is not an appropriate placement for the child if reunification is unsuccessful

☐ ODHS is ordered to develop or modify the case plan as follows within Σ days after this hearing and to provide a case progress report to the court and the parties

► **ODHS compliance with case plan:**

The child ☐ **is** ☐ **is not** in the permanent placement designated by the case plan. The date of permanent placement ☐ **was** ☐ **will be** (date)

ODHS ☐ **has** ☐ **has not** made reasonable efforts to place the child in a timely manner (including, if applicable, in an interstate placement) in accordance with the plan and to finalize the child's permanent placement:

► **Description** of efforts ☐ attached as Exhibit _____ and adopted as the court's written findings or as follows: Σ

ODHS ☐ **has** ☐ **has not** considered the appropriate and available permanent placement options for the child, both in-state and interstate

ODHS ☐ **is** ☐ **is not** in compliance with the current case plan. To correct the noncompliance, ODHS is ordered to: Σ

☐ ODHS is ordered to develop or modify the case plan as follows within days after this hearing and to provide a case progress report to the court and the parties

► ☐ **CONTINUE the current permanent plan**

The current permanent plan **is** the most appropriate plan for the child under existing circumstances and is in the child's best interest. Therefore the court orders that the current permanent plan (specified in SECTION 12 below) continue in effect.

► ☐ **CHANGE the current permanent plan**

The current permanent plan **is not** the most appropriate plan for the child under the existing circumstances and **is not** in the child's best interest. Therefore the court orders that the current permanent plan is changed to the **permanent plan** specified in SECTION 12 below

Additional findings and orders:

► ☐ Continued removal of the child is necessary to prevent serious emotional or physical damage to the child. Additional findings about whether the new permanency plan complies with the placement preferences described in ORS 419B.654(1):

13. Court's Determination of the Permanency Plan

The court orders that the plan be ☒ changed or ☒ continued as follows:

☒ **REUNIFICATION** of the family because further efforts will make it possible for the child to be safely returned to ☐ mother/parent's ☒ father/parent's care within a reasonable time. THEREFORE, between 5/22/2026 and (date) : the parents are ordered to participate in the following services and make the progress specified below:

<u>Mother/Parent</u>	Services: Progress:
<u>Father/Parent</u>	Services: Progress:

If the parents make the progress described above (and any additional progress that the court may require based on a future hearing), the child will be returned to ☐ mother/parent's ☐ father/parent's care by (date)

☐ **ADOPTION** (ORS 419B.498(2))

- The child is **not** being cared for by a relative in a placement (other than adoption) that is intended to be permanent
- and
- Termination of parental rights is in the child's best interests (with no compelling reason to the contrary) **because:**
 - The parent is not participating in services that will make it possible for the child to safely return home within a reasonable time
 - No other permanent plan is better suited to meet the health and safety needs of the child, including the need to preserve the child's sibling attachments and relationships
- and
- Tribal customary adoption is not an appropriate plan for the child

- ODHS provided reasonable or active efforts to make it possible for the child to safely return home, or, if the court or CRB made a prior finding that ODHS did not make reasonable or active efforts for the child to safely return home, sufficient efforts have been provided since the negative finding

and

- ODHS has provided the services it deems necessary for the child to safely return home consistent with the time period in the case plan

Additional findings:

☐ This court determines the permanency plan will be ADOPTION. The termination-of-parental-rights petition must be filed by (date) Σ . The child must be placed for adoption by (date) Σ

- ☐ The termination of parental rights petition has already been filed
- ☐ The child is legally free

☐ **TRIBAL CUSTOMARY ADOPTION**

☐ Pursuant to ORS 419B.498(2), the court finds termination of parental rights is not in the child's best interest because the court finds that tribal customary adoption is an appropriate permanent plan for the child and the Indian child's tribe consents to the tribal customary adoption

☐ This court determines the permanency plan will be TRIBAL CUSTOMARY ADOPTION

☐ The tribe must file the tribal customary adoption order or judgment by: _____ or file a request for an extension by that date

☐ **GUARDIANSHIP** ☐ **ORS 419B.366 (durable)** ☐ **ORS 419B.365 (permanent) or**
☐ **PLACEMENT WITH A FIT AND WILLING RELATIVE**

☐ Placement of the child with a parent is **not** appropriate because, despite the **reasonable** reunification efforts of ODHS, the child cannot be safely returned to a parent within a reasonable time

☐ Adoption is **not** appropriate because the child currently is being cared for by a relative in a placement (other than adoption) that is intended to be permanent as provided for in ORS 419B.498(2)(a), or because the following compelling reasons under ORS 419B.498(2)(b) are applicable and establish that adoption would **not** be in the child's best interest:

- ☐ another permanent plan – guardianship – is better suited to meet the child's health, safety and attachment needs
- ☐ the child has needs that require a therapeutic or other specialized placement
- ☐ adoption is unlikely or inappropriate because of the child's ☐ unwillingness to consent ☐ health and safety needs ☐ sibling attachment ☐ attachment to a parent ☐ other "compelling reasons" (explain)

Additional findings:

☐ This court determines the permanency plan will be GUARDIANSHIP. The court orders that the child be referred for establishment of the guardianship by (date) Σ . The guardianship must be established by (date) Σ

☐ This court determines the permanency plan will be PLACEMENT WITH A FIT AND WILLING RELATIVE. The court orders that the child be placed in such custody by (date)Σ

☐ **ANOTHER PLANNED PERMANENT LIVING ARRANGEMENT (APPLA) (child 16 or older)**

The court finds APPLA is the best permanency plan for the child because it is not in the child's best interest to be placed in another permanency plan due to the following compelling reasons:

☐ Placement of the child with a parent is not appropriate because, despite the **reasonable** reunification efforts of ODHS, the child cannot be safely returned to a parent within a reasonable time

☐ Adoption is not appropriate because the following "compelling reasons" under ORS 419B.498(2)(b) are applicable and establish that adoption would **not** be in the child's best interest:

☐ another permanent plan – APPLA – is better suited to meet the child's health, safety and attachment needs

☐ the child has needs that require a therapeutic or other specialized placement

☐ adoption is unlikely or inappropriate because of the child's ☐ unwillingness to consent ☐ health and safety needs ☐ sibling attachment ☐ attachment to a parent ☐ other "compelling reasons" (explain)

☐ Guardianship is not appropriate because, despite reasonable and diligent efforts, ODHS has been unable to identify a relative or non-relative who is willing and qualified to serve as the legal guardian for the child

☐ Placement with a fit and willing relative is not appropriate because there is no relative available who is willing and qualified to serve as a placement

Additional findings:

☐ This court determines the permanency plan shall be APPLA:

☐ permanent foster care ☐ permanent connections and support (residential treatment, independent living, substitute caregiver). The court orders that the child be placed in the APPLA placement by (date) Σ and that ODHS promptly notify the court and the parties if the child is not placed by that date.

14. Substitute care and custody

☒ The court continues the child in the legal custody of ODHS for care, placement, and supervision. The child is in substitute care, which is not a permanent placement, and continued substitute care is necessary for the reasons stated above and for the following reasons:

☐ The child is in the legal custody of ODHS and placed with a parent (or guardian appointed before the child was found to be within the juvenile court's jurisdiction) and it ☐ **is** ☐ **is not** necessary and in the child's best interests to continue in the legal custody of ODHS because: Σ Termination of the child's ☐ commitment to the legal custody of ODHS is expected to occur by (date) ☐ juvenile court wardship is expected to occur by (date)

Under ORS 419A.255(4)(a)(C), the Court consents to the use and disclosure of records, reports, materials or documents in the record of the case or the supplemental confidential file by ODHS

if such use and disclosure is reasonably necessary to perform its official duties related to the involvement of the child with the juvenile court.

15. Additional Findings and Orders

► ☒ The court incorporates and adopts by this reference all oral findings made by the court at the conclusion of the permanency hearing.

► The court ☐ **has** ☐ **has not** consulted with the child in an age-appropriate manner regarding the permanency and transition plans proposed for child, as required by 42 U.S.C. § 675

► **ICWA/ORICWA:**

Each party is required to inform the court immediately if the party receives information that provides reason to know the child is an "Indian Child." ODHS is ordered to continue its inquiry into whether the child is an "Indian Child" and report the results of the inquiry to the court.

► The court makes the following additional findings and orders: Court supports youth having visits with mom supervised by the resource parents, and no limits on phone contact (within reason).

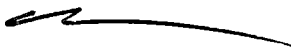
☐ **All parties present were notified of these court dates and are ordered to appear**

Future Proceedings:

<u>Type</u>	<u>Date</u>	<u>Time</u>
<u>Review Hearing</u>		
<u>Permanency Hearing</u>	September 29, 2026	10:00am
If the child is in the legal custody of ODHS and placed in substitute care, the CRB will conduct a review of this case in	☐ 6 months ☐ 3 months	DOCKETED
Other		

☐ No further review necessary

June 29, 2026


Michele C. Rini Circuit Court Judge

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
JUVENILE DEPARTMENT

In the Matter of) Case No. 25JU04261
AL-MIRA AMIRA JAZMINE DAVIS,)
A Child.) PERMANENCY HEARING
)
)

THIS MATTER came before the Court on June 29th, 2026 at 9:00 a.m.

Present at the hearing were:

Juvenile Counselor ODHS ☒ David Milne

Child(ren) / Youth Al-Mira OYA

Child(ren)/Youth's Attorney ☒ Ryan Lhotsky

Mother ☒ Ashle Penn Mother's Attorney

Father Alquan Davis Father's Attorney ☒ Yvana Mols

Assistant Attorney General ☒ Yazmin Wadia

CASA ☒ Keiko Tsuji, ☒ Alta Murphy

Resource Parent(s) yes

Grandparent(s)

Other

PERMANENCY HEARING COVER SHEET